

MINUTES OF SPECIAL MEETING
WAGONER COUNTY BOARD OF COMMISSIONERS
MONDAY, AUGUST 31ST, 2026

The Board of Wagoner County Commissioners met in open meeting in the Commissioners Meeting Room. Chairman, Randy Stamps, Vice-Chairman, Tim Kelley, Member, James Hanning and County Clerk, Lori Hendricks were present. District Attorney Reginald Armor was also present. Advance notice of the meeting was posted on the Wagoner County Courthouse bulletin boards and the County website on Friday, August 28th, 2026.

- I. The meeting was called to order at 1:02 P.M. and Roll was called with the following response: Commissioner James Hanning, present; Commissioner Randy Stamps, present; Commissioner Tim Kelley, present.
- II. Prayer was led by County Clerk Lori Hendricks and Pledge of Allegiance was led by Commissioner Tim Kelley.
- III. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Consideration of Consent Agenda. The motion to approve passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
 - A. Approve or disapprove minutes of commission meeting held August 24th, 2026.
 - B. Approve or disapprove the following labor waiver(s):
 1. Dump Dirt (7 - 10 loads needed)
off county right-of-way at 7001 S. 254th E. Ave., Broken Arrow, OK 74014. Property Owner: Samantha and Michael Thomas, District 1.
 2. Clean out ditch and clean fence row and stock-pile cleared tree debris and wood chips off county right-of-way at 30180 E. 91st St. Coweta, OK 74427. Property Owner: Jasier Randolph, District 1.
 - C. Approve or disapprove deposit(s)
 - D. Reports
 1. Cash Voucher weekly report

2. Emergency Management weekly report
 3. Economic Development Director weekly report
 4. Weekly Inmate Headcount report
 5. Maintenance weekly report
 6. Planning & Zoning weekly report
 7. E-911 weekly report
 8. I.T. weekly report
- E. Approve or disapprove Jeff Waller and Marcy Kilgore as Requisitioning officers for the City of Coweta Fire Department.
- F. Approve or disapprove non-compliant Purchase Orders.
- G. Approve or disapprove cancellation of the following purchase order(s): #262821, #262885, #264258, #267516, #268527, #268545, #268560 #268160, 271944, #271945, #271946, #271947, #271948, #271949, #271950, #271959, #272043, #272114, #272117, #272118, to include warrants #000305, #000089, #000744
- H. Approve or disapprove the following blanket purchase order(s): #262821, #268160
- I. Approve or disapprove calendar claims.
- J. Approve or disapprove Resolution #2026-116 Tallahassee Fire Department surplus of 2011 Polaris Ranger 800 6x6 VIN #4XAGR76AXB4201747 to be sold to Toppers Fire Department for \$4,500.
- K. Approve or disapprove transfer from Toppers Fire Department Account #1321-2-8211-2005 in the amount of \$4,500 to Tallahassee Fire Department Account #1321-2-8212-2005 for purchase of 2011 Polaris Ranger 800 6x6.
- L. Approve or disapprove Resolution #2026-117 County Clerk to reimburse General Fund with refund deposits from OPERS.
- IV. No action was taken regarding Items Removed from Consent Agenda.

V. Action Items

- A. A motion was made by Commissioner Kelley and seconded by Commissioner Stamps to table Memorandum of Understanding between Wagoner County and Cherokee Nation for the purpose of providing construction, improvement, right-of-way acquisition, and/or utility relocations for roads and/or bridges within the county. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- B. A motion was made by Commissioner Kelley and seconded by Commissioner Stamps to approve Memorandum of Understanding between Wagoner County and Muscogee Creek Nation regarding scope of the S 365th E Ave Bridge Project. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- C. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve the Project Approval Letter for Muscogee (Creek) Nation's proposed Bridge Project NBI #06646, NTTFI #1012, located in Wagoner County. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- D. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Resolution #2026-108 Zoning map amendment request in District 3, ZNE-47-2026, John Whitesell. Location: 22925 E, 191st St. S. Haskell, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- E. A motion was made by Commissioner Hanning and seconded by Commissioner Stamps to approve Resolution #2026-114 Final Plat of Meadowview Estates Phase I in District 1. Location: SW corner of E. 71st St. S. and S. 305th E. Ave., Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

- F. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to table Resolution #2026-115 Final Plat of Emerald Falls Blocks 10- 15 in District 1. Location: SW Corner of E. 61st St. S. and S. 321st E. Ave. Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- G. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to approve ONG Utility Relocation Claim 324A for State Project No. 32380, 273rd East Avenue between Admiral Boulevard and East 21st Street. District 1. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- H. No action was taken regarding Wagoner County agreement with Flock Safety for LPR cameras.

VI. Old Business

- A. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Wagoner County Health Department lease agreement with Standley for new printers. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- B. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Oklahoma Mental Health and Substance Abuse request for contract extension length of 90 days for Mental Health Court, Early Diversion Program, Adult Drug Court and Juvenile Drug Court. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- C. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to table use of the county deductible fund for two Sheriff's Office vehicles sustaining damage due to Hailstorm on May 8, 2026 and one vehicle sustaining damage due to collision

with a deer on August 8th, 2026. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

VII. Financial Matters

A. Approve or disapprove the following invoice(s):

1. A motion was made by Commissioner Hanning and seconded by Commissioner Stamps to approve Kimley Horn Invoice #061333600-0726 in the amount of \$11,400 for 273rd Widening, data collection, conceptual design, etc. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
2. No action was taken regarding Rogers Co RWD#5 Pay Claim #7, State Project 32380, 273rd East Ave between Admiral and 21st, to include 324A claim for ODOT payment processing (District 1).

VIII. No New Business.

IX. No Public Comment.

- X. Announcements: County Clerk Lori Hendricks reminds everyone that the Courthouse will be closed for Labor Day on Monday September 7th and the Commissioners meeting will be Tuesday September 8th. The Sheriff congratulated Investigator Joel Webber for secret service top digital performer and announced that he will be receiving the notorious service award from the Oklahoma Sheriff's Association.

- XI. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to enter Executive Session at 1:05 p.m. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye. - pursuant to 25 O.S. § 307(B)(4) for confidential communication between the Board of County Commissioners and its attorney concerning the pending litigation based on its attorney's determination that disclosure of these communications will seriously

impair the ability of the Board to conduct the pending litigation and remanded proceedings regarding the following:

- A. Persica Solar, LLC v. Board of County Commissioners, Case No. CV-25-111
 - B. RRJ Sand Co. LLC v. Board of County Commissioners, Case No. CV-25-90
- XII. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to reconvene into Open Session at 1:18 p.m. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- XIII. No action was taken regarding confidential communications with legal counsel for the following items:
- A. Persica Solar, LLC v. Board of County Commissioners, Case No. CV-25-111
 - B. RRJ Sand Co. LLC v. Board of County Commissioners, Case No. CV-25-90
- XIV. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to Recess at 2:31 p.m. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

Presented and approved by the Wagoner County Commission on this 8th day of September 2026.

JAMES HANNING, MEMBER

RANDY STAMPS, CHAIRMAN

TIM KELLEY, VICE-CHAIRMAN

ATTEST: LORI HENDRICKS
WAGONER COUNTY CLERK